

Key Function Holder - Notifications

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to:

1. (1) a [UK Solvency II firm](#);
2. (2) in accordance with [Insurance General Application 3](#), the [Society](#), as modified by [5](#);
3. (3) in accordance with [Insurance General Application 3](#), a [managing agent](#), as modified by [5](#);
4. (4) a [third country branch undertaking](#) (other than a [Swiss general insurer](#)); and
5. (5) a [UK ISPV](#).

- 01/01/2016

1.2

In this Part, the following definitions shall apply:

[key function holder notification form](#)

means Form M.

- 10/12/2018
- [Past version of 1.2 before 10/12/2018](#)

2

Key Function Holder Notification

2.1

[Deleted.]

- 10/12/2018
- [Past version of 2.1 before 10/12/2018](#)

2.2

A [firm](#) must provide the information required by [Insurance – Fitness and Propriety 4.1](#) for each [key function holder](#) as soon as reasonably practicable after the appointment of the [key function holder](#).

- 01/01/2016

2.3

The [PRA](#) directs that, subject to [2.4](#), the information referred to in [2.2](#) must be provided to the [PRA](#) in the [key function holder notification form](#) in accordance with [3.3](#).

- 01/01/2016

2.4

The [PRA](#) directs that:

1. (1) where the [key function holder](#) is to be approved by the [PRA](#) to perform a [PRA senior management function](#), the [firm](#) must provide the information referred to in [2.2](#) to the [PRA](#) in whichever Form is required for the [PRA senior management approval application](#), pursuant to [Insurance - Senior Managers Regime - Applications and Notifications 2](#), which must be accompanied by a [statement of responsibilities form](#); and

2. (2) where the [key function holder](#) is to be approved by the [FCA](#) to perform an [FCA controlled function](#), the [firm](#) is not required to submit a [key function holder notification form](#) to the [PRA](#) to the extent the [firm](#) provides the information referred to in [2.2](#) to the [FCA](#) as part of the application to the [FCA](#), with a [statement of responsibilities form](#).

- 10/12/2018
- [Past version of 2.4 before 10/12/2018](#)

3

Procedure for Making Applications and Notifications

3.1

The [PRA](#) directs that, save as required by [3.2](#) and [3.3](#), a [firm](#) must make any applications, notifications or submissions required by this Part by submitting the form specified using the [ONA system](#).

- 01/01/2016

3.2

If, under any direction or rule in this Part:

1. (1) a [firm](#) is required to make an application, notification or submission online; and
2. (2) the information technology systems used by the [PRA](#) fail and online submission is unavailable for 24 hours or more,

until such time as facilities for online submission are restored, a [firm](#) must submit the specified form in the way set out in [Notifications 7](#).

- 01/01/2016

3.3

The notifications required under [2.3](#) should be submitted in accordance with [Notifications 7](#).

- 10/12/2018
- [Past version of 3.3 before 10/12/2018](#)

4

Forms

4.1

The [*key function holder notification form*](#), Form M, may be found [here](#).

- 10/12/2018
- [Past version of 4.1 before 10/12/2018](#)

5

Lloyd's

5.1

This Part applies to the [*Society*](#) and [*managing agents*](#) separately.

- 01/01/2016

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Transitional Arrangements for Key Function Holders (Deleted)